

BEFORE THE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Complaint No. 02.030(C)

AGREEMENT TO CEASE PRACTICE

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE PRACTICE OF PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF MARTHA DOUGLASS WOODWARD, M.S., LICENSE NO. 385.

Respondent.

IT IS HEREBY AGREED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Martha Douglass Woodward, ("Respondent"), as follows:

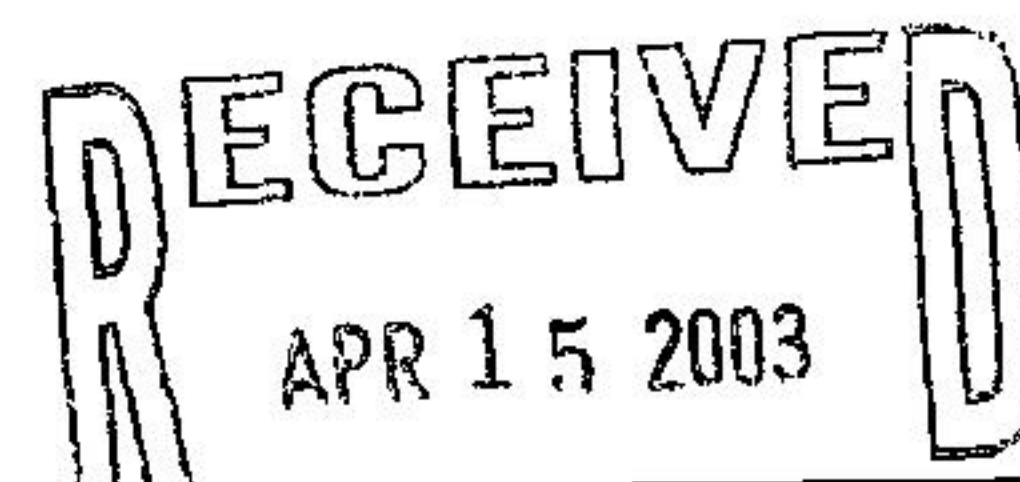
1. Respondent has been engaged in the practice of professional counseling at all relevant times regarding this matter.
2. The Board has jurisdiction over the person of Respondent and the subject matter of this Agreement.
3. This Agreement is a full and final resolution of Complaint No. 02.030 (C).
4. The Board has reviewed a complaint relevant to Respondent's license as a Professional Counselor.
5. The Respondent is aware that there is a possibility a cease and desist order, summary suspension, or revocation of her license to practice professional counseling could be ordered based upon the complaint.
6. Respondent wishes to cease the practice of professional counseling and consents to modification of her license as set forth in this Agreement.
7. The modification of Respondent's license set forth in this Agreement is reasonably necessary to safeguard the welfare of the people of this State.
8. Respondent agrees that she will immediately cease the practice of professional counseling or psychotherapy in the State of Colorado. Respondent voluntarily agrees not to practice as a licensed professional counselor or unlicensed psychotherapist for a **minimum of seven years from the date Respondent signs this Agreement**. Should Respondent wish to practice professional counseling at the end of this seven year period, she shall comply with the Board's license reinstatement rules in effect at the time of her reinstatement request.

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Pg. 2

Woodward Agreement

9. The Board alleges and Respondent denies that she violated confidential communications between a client and therapist and engaged in a relationship with a client that would likely impair her professional judgment or increase the risk of client exploitation. Respondent acknowledges that if the Board were to prove the allegations at hearing, such conduct would constitute a violation of 12-43-218 and 12-43-222 (1) (i), C.R.S. respectively.
10. This Agreement is a public record in the custody of the Board at all times.
11. This Agreement constitutes a valid Board Order for purposes of 12-43-224 C.R.S.
12. If, during the period of time covered by this Agreement, any additional complaints are received by the Board related to this case, the Board may review those complaints and determine if further action is appropriate.
13. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to 12-43-224 C.R.S.
14. Although Respondent waives those rights for the period of time covered by this Agreement, the Board reserves the right to file a Notice of Charges or take any other action that the Board deems necessary to protect the public.
15. In the event of relocation to another state, Respondent shall notify the Board of her change of address within fifteen (15) days of such relocation, and hereby gives consent to the Board that it may notify the Professional Counselors Board or equivalent agency in any state to which Respondent locates of the existence of this Agreement and the surrounding circumstances.
16. Each provision of this Agreement is separate. In the event of litigation involving compliance with the terms of this Agreement, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the Agreement; and the parties will be obligated by the judicially construed parts of the Agreement as if they were part of the original Agreement.
17. This Agreement is entered into voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Agreement and the right to a formal hearing.
18. This Agreement shall become effective as an Order when accepted and signed by the Board or an authorized representative.



Pg. 3

Woodward Agreement

19. This Agreement constitutes the entire agreement of the parties. There are no other agreements or promises, written or oral, which modify, interpret, construe or affect this Agreement.
20. Respondent agrees to surrender her license to the Board within thirty days after Respondent signs this Agreement. This Agreement constitutes a disciplinary action by the Board subject to any disciplinary action reporting requirements of the Board.

ACCEPTED AND AGREED BY:

RESPONDENT

Martha D Woodward, LPC
Martha Douglass Woodward, LPC

PO Box 1245
Address

Manitou Spr Co 80829

(719) 632-2741
Phone

APPROVED AS TO FORM:

Alan G. Molk, Esq.
Attorney for Respondent

ACCEPTED AND ORDERED BY:

COLORADO BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS

John J. Kleinheksel, J.D.
Chair

Effective this 17 day of

April, 2003.

PREPARED BY:

Amos D. Martinez, Ph.D.
ES Coordinator

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